



File No.: EXP202212704

RESOLUTION No.: R/00299/2023

Considering the claim filed on October 10, 2022, with this Agency by A.A.A. (hereinafter the claimant) against ALOKABIDE, S.A. (hereinafter the respondent), for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The claimant exercised their right of access against the respondent with NIF A01300706, and their request, as stated by the claimant, did not receive the legally established response. They provide various documents related to the claim made before this Agency and regarding the exercise of the right exercised. The claimant also requests the inspection reports, results, and photos taken at their home by the respondent.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of claims filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the claim was forwarded to the respondent entity for analysis and to respond to the claimant and this Agency within one month.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on January 10, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the claim for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have commenced through said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing procedure, so that within ten working days it could present the allegations it deemed appropriate.

This entity summarized the following allegations:

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The respondent provides three documents; in the first, it discusses the purpose of data collection and that this data could be communicated to third parties to develop and support the activity they share.

“...Your personal data may be communicated to third parties or organizations if necessary for the fulfillment of legally established obligations, (...) The information is managed through the data storage services MICROSOFT AZURE and SALESFORCE with servers located in the European Union and technical personnel located in the USA and subject to standard contractual clauses approved by the data protection authorities of the European Union.

They continue discussing the duration of the data and specify:

“...Regarding what is included in your request to “Add the inspection reports, results, and photos taken at my home by Alokabide,” we must indicate that this type of data is not personal in nature and, therefore, it is not appropriate to request it through the DPO since this channel is not suitable for the request for that information.

The reports, results, and photos they mention are pure technical reports about a technical incident that occurred in the property rented from Alokabide, which generated a series of events sent to the insurance of that property, which took care of the repairs. In that documentation, no personal information can be inferred; therefore, its sending is not appropriate...”

In Document II, submitted with the allegations, they send a copy of the lease agreement. And in Document III, with which they conclude their allegations, they provide copies of the claimant's tax documents.

FOURTH: After examining the allegations presented by the respondent, they are forwarded to the claimant, so that, within fifteen working days, they may formulate any allegations they deem appropriate.

The claimant states that they made it quite clear with the form they filled out that they were requesting the right of access and adds the inspection reports, results, and photos taken at their home by the respondent.

They believe that the right of access has not been attended to and find no justification for the refusal regarding the requested photographs and reports.

"...What I requested is that the photos and files generated by Alokabide due to the contract renewals be added, where they carry out a thorough inspection of the entire house, taking several photos of all the rooms, with my personal items inside, and that they tell me it is mandatory for me to accept in order to renew my lease, without me knowing where those photos go, to whom they are sent, how long they are kept, or what is done with them afterwards, in addition to denying me information about the results of those inspections..."

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the

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European Parliament and Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring them to respond to this Agency within one month and to demonstrate that they have provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the initiation of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, the exceptional nature of which implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of the activity.

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sanctioning, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to restrict processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Moreover, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof of compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, according to what is established in Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, being deemed that the request has been attended to (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which entails a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing.

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that is being made of your data, the possibility of obtaining a copy of the personal data concerning you that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data in question, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others. In the case analyzed here, the claimant exercised their right of access through a form, expressly requesting as part of the right of access photographs, reports, and results regarding the property they are renting. The respondent, throughout the procedure, responds by providing the claimant with the routes they follow in their privacy policy in a generic manner, and individually sends the housing contract and some tax documents containing the claimant's data. Furthermore, the respondent, in their response to the claimant, states that: "Regarding what you included in your request to 'Add the inspection reports, results, and photos taken in my home by Alokabide,' we must indicate that this type of data is not personal in nature, and therefore, it is not appropriate to request it through the DPO since this channel is not suitable for the request for that information." In the response to the AEPD, the report requested by the respondent is identified as "a pure technical report on some leaks that generated a series of events sent to the insurance of that property, which took care of the repairs."

However, the respondent indicates to the AEPD that they were not referring to the incident that occurred in the rented property but rather that what they requested "is for the photos and files generated by Alokabide regarding the contract renewals to be added, where a thorough inspection of the entire house is conducted, taking several photos of all the rooms, with my personal belongings inside, and which they tell me I must accept in order to renew my lease, without me knowing where those photos go, to whom they are sent, the time they are kept, or what is done with them afterwards, in addition to denying me information about the results of those inspections."

Therefore, in light of what was requested and what was provided, we must affirm that the right of access has not been adequately addressed.

Firstly, the right of access has not been addressed as set forth in the aforementioned regulations, which requires not only confirmation of whether the personal data concerning the data subject is being processed and the information described in the

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Article 15.1 of the GDPR states that the data subject must access the actual personal data, as this constitutes the core of this right. Access to personal data refers, therefore, not only to a general description of the data or a mere reference to the categories of personal data processed by the data controller, but to the specific and concrete personal data concerning the data subject that are being processed by the data controller.

In the case examined and for this specific situation, although the data controller has provided certain documents, some of which contained personal data intrinsically linked to the document, such as the signature of the claimant in the signed rental contract, this does not exempt them from providing the entirety of personal data to the claimant in the terms previously specified.

Secondly, the claimant has requested the inspection reports, results, and photographs taken at their home by the data controller for the purpose of proceeding with the renewals of the rental contract. The respondent claims that both the photographs and the reports would not fall within the right of access, asserting that these photographs and reports do not contain data of the claimant, which they consider not to be personal data, thereby denying access to such personal data.

Well, the concept of personal data arises from Article 4.1 of the GDPR, which states that personal data is: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference

to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.”

The Opinion 4/2007 of the Article 29 Working Party on the concept of personal data already stated that the definition of personal data in Directive 95/46/EC “reflects the intention of the European legislator for a broad notion of personal data,” resulting in the GDPR maintaining the Directive's definition of personal data as “any information relating to an identified or identifiable natural person.”

The definition reflects the legislator's intention to maintain a broad concept of “personal data,” which requires a wide interpretation that encompasses all information that can be linked to an identified person, or refers to an identifiable person, with the aim of protecting the fundamental freedoms and rights of natural persons, among others, particularly their right to privacy concerning the processing of personal data.

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The interpretation of what constitutes personal data cannot, therefore, be interpreted restrictively, under penalty of contravening the provisions of the GDPR.

This is based on the consideration that “the practical objective of the right of access is to allow individuals to have control over their own personal data,” as stated in the Guidelines 1/2022 on the rights of data subjects – Right of Access by the European Data Protection Board, adopted on January 18, 2022.

The aforementioned broadness in the definition of personal data is defined by:

- “any information,” including all data that provides information, regardless of the type of information, which must have a broad interpretation, encompassing subjective or objective information, including assessments, diagnoses, or opinions.

- “about” a natural person, thus relating any type of information about a natural person. Here, it is essential to connect the purpose of the information with the “about” whom it concerns and the effects it may have for that person.

- “identified” or “identifiable.” Identified refers to any natural person who is distinguished within a group of people from all members of the group; identifiable is the natural person who, although not yet identified, can be identified.

We will particularly focus on the second component of the definition “about,” which determines the relationships, the links between the information and the natural person.

Opinion 4/2007 of the Article 29 Working Party establishes that “Generally, information can be considered to be ‘about’ a person when it refers to them.”

It continues to clarify that “...it could be stated that to consider that the data is ‘about’ a person, there must be a ‘content’ element or a ‘purpose’ element or a ‘result’ element.”

The ‘content’ element is present in those cases where - according to what society generally and commonly understands by the word “about” - information is provided about a specific person, regardless of any purpose that the data controller or a third party may have, or the impact of that information on the data subject. Information is ‘about’ a person when it ‘refers to’ that person, which must be evaluated considering all the circumstances surrounding the case. For example, the results of a medical analysis clearly refer to the patient, or the information contained in a company's file under the name of a specific client clearly refers to them. (...)

The presence of a ‘purpose’ element may also determine that the information is ‘about’ a specific person. It can be considered that this ‘purpose’ element exists when the data is used or is likely to be used, taking into account all the circumstances surrounding the specific case, with the

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purpose of evaluating, treating in a certain way, or influencing the situation or behavior of a person. We are faced with a third category of "about" when there is an element of "result." Despite the absence of an element of "content" or "purpose," it can be considered that the data pertains "about" a specific person because, taking into account all the circumstances surrounding the specific case, it is likely that its use will affect the rights and interests of a particular person. It is sufficient that the person may be treated differently by others as a consequence of the processing of such data.

These three elements (content, purpose, and result) should be considered as alternative and not cumulative conditions" (the underlining is ours).

To the above, we must add that the aforementioned Guidelines 1/2022 provide that among the personal data that must be provided through the right of access are those consciously and actively provided by the data subject (such as responses to a questionnaire), or those data derived from other data (such as the country of residence derived from the postal code), or those inferred from other data, instead of being directly provided by the data subject (to assign a credit score or results from a health assessment or a personalization or recommendation process), among others.

These Guidelines state that personal data includes the elements that have been used to reach a decision such as, for example, employee promotions, salary increases, or new job assignments. They further indicate that "...the right of access includes both inferred and derived data... the data subject must be provided not only with the personal data provided to the data controller for the purpose of conducting subsequent analysis or evaluation of this data but also with the result of such subsequent analysis or evaluation" (the underlining is ours).

In the case examined and according to the data contained in the administrative file, the personal data collected by the data controller has been used to reassign the rented property to the claimant.

According to the above, the photographs (of the interior of the property and with the belongings of the claimant), the report, and the result of it have been used to evaluate her condition to continue being a tenant of the property, to the extent that its use affects her rights and interests, since if the result of the evaluation is negative, it could hinder the renewal of the contract. And all this without prejudice to the fact that the right of access does not include copies of documents but access to personal data, understood as any information about an identified or identifiable natural person.

Therefore, they are not mere photographs or random reports, but rather show particularities linked to the claimant; thus, in light of this specific task, they would be included in the right of access.

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Based on the above, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, it is appropriate to uphold the complaint that initiated this procedure, as it is considered that the right of access was not carried out properly.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. and to instruct ALOKABIDE, S.A. with NIF A01300706, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right of access or a reasoned denial indicating the reasons why the request cannot be granted, in accordance with what is established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR. SECOND: NOTIFY this resolution to A.A.A. and ALOKABIDE, S.A.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. 1037-140323

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